

DEPARTMENT OF VETERANS AFFAIRS

**Justification and Approval (J&A)
For
Other Than Full and Open Competition (>SAT)**

Acquisition Plan Action ID: 36C242-26-AP-1741

1. **Contracting Activity:** Department of Veterans Affairs, VISN 2, VA NY Harbor Healthcare System (VA NYHHHS), Manhattan Medical Center located at 423 E 23rd St, New York, NY 10010.

Transaction number: 630-26-3-4456-0055

2. **Nature and/or Description of the Action Being Approved:** Network Contracting Office (NCO) 2 intends to award a sole-source service contract for the procurement of a full-Service contract to include PM, Repair, Software updates, Parts and Labor with Hill-Rom, Inc. This includes 104 surgical intensive care units and med surge beds, listed in section three (3) below. The period of performance is May 3, 2026 to May 2, 2027 with the provision of four (4) option years. The estimated total cost is \$366,985.95.

Base Year 05/03/2026 to 05/02/2027 \$73,397.19

Option Year 1 05/03/2027 to 05/02/2028 \$73,397.19

Option Year 2 05/03/2028 to 05/02/2029 \$73,397.19

Option Year 3 05/03/2029 to 05/02/2030 \$73,397.19

Option Year 4 05/03/2030 to 05/02/2031 \$73,397.19

3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The New York Harbor VA Healthcare Medical Center requires a service contract for the maintenance of 23 Hill-Rom Progressa Beds, 1 Total Care Bed, 23 Hill-Rom Versa Care beds, and 57 Centrella beds located in New York Campus. Repair services will be provided, at the request of the VA, to diagnose and correct equipment malfunctions on a routine basis. All repairs shall be performed by a manufacturer-trained technician. Contractor will follow manufacturer's recommendations for PM, repairs, calibrations and modifications. Contract to include all necessary labor, tools, equipment, software updates, transportation and parts required to perform repair and preventative maintenance (PM) on listed equipment. All equipment shall be maintained in proper operating condition as specified by the manufacturer. Vendor must use Original Equipment Manufacturers (OEM) parts, manuals and schematics to perform the service. The vendor must have their own schematics available on site at time of service. PMs must be completed two times per year on each bed, also, in an event that a module requires repair, Contractor shall provide the VA with a new module. The purpose of the service agreement is to reduce service costs and improve equipment's turn-around time and reliability. Hill-Rom, Inc. is the sole-source provider of OEM trained and certified technicians who are qualified to perform scheduled and unscheduled maintenance.

4. Statutory Authority Permitting Other than Full and Open Competition:

- (x) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 USC §3304(a)(1) as implemented by RFO 6.103-1;
- () (2) Unusual and Compelling Urgency per 41 USC §3304(a)(2) as implemented by RFO 6.103-2;
- () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 USC §3304(a)(3) as implemented by RFO 6.103-3;
- () (4) International Agreement per 41 USC §3304(a)(4) as implemented by RFO 6.103-4
- () (5) Authorized or Required by Statute per 41 USC §3304(a)(5) as implemented by RFO 6.103-5;
- () (6) National Security per 41 USC §3304(a)(6) as implemented by RFO 6.103-6;
- () (7) Public Interest per 41 USC §3304(a)(7) as implemented by RFO 6.103-7;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

Hill-Rom Technicians are factory trained and certified on all of the products required. Having certified technicians working on the equipment keeps the hospital in compliance with all regulatory agencies. Each service representative is trained in safety procedures including Infection Control, Hepatitis-B Virus, OSHA Hazard Communications, back safety and applicable regulatory requirements. Many of the parts necessary to maintain these products are unique to the products and can only be purchased through Hill-Rom, the OEM. A letter was received from Hill-Rom stating they are the OEM and the sole provider for the Hill-Rom products. Hill-Rom, Inc states they are the only contractor able to provide OEM certified technicians, repair parts, software updates, tech support, and labor. Hill-Rom, Inc. does not provide technical training, repair parts, and software updates to 3rd party companies. Therefore, the required services can only be provided by Hill-Rom, Inc.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as possible (including whether a notice was or will be publicized as required by RFO Part 5 and, if not, which exception under RFO Part 5 applies:

Market research was conducted and it was determined that no other entity can provide the required services. A Notice of Intent to Sole Source was posted on SAM.gov 1/30/2026 to 2/9/2026 with no responses received. According to the original equipment manufacturer (OEM), Hill-Rom, Inc, they are the only entity that can provide OEM compliant maintenance services and OEM certified technicians. These market research findings are confirmed by the previous sole source award of similar requirements to Hill-Rom, Inc. A search of the Small Business site and GSA revealed no potential vendors. These results indicate that there are no other entities that can satisfy this requirement.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

Determination of fair and reasonableness of cost will be based upon a complete price analysis and Independent Government Cost Estimate. A RFQ will be sent to Hill-Rom, Inc. and the anticipated cost will be evaluated to be considered fair and reasonable prior to an award being made. Tradeoffs and Evaluation Factors are not applicable for this requirement.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

Market research was performed using the following techniques to identify potential sources: A search of the Small Business Search site for small businesses and a separate search for Service Disabled Veteran

Attachment 1: Request for Sole Source Justification Format >SAT

Owned Small Business (SDVOSB), Veteran Owned Small Business (VOSB) and GSA revealed no potential vendors. A memo was received from the vendor stating they are the sole provider that can meet the needs of the using service to maintain the Hill-Rom fleet.

It is determined that Hill-Rom, Inc. 1069 State RTE 46E, Batesville, IN 47006-9167 is the sole source vendor with the ability to maintain the Hill-Rom equipment. The Original Equipment Manufacturer "OEM" is the only source in which software updates can be installed on the equipment due to proprietary rights.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

Maintenance, while secondary to the issues of patient and staff safety, is another important factor to consider. A malfunctioning bed needs to be placed back into service as quickly as possible, as the lifts are used for Veterans in their hospital rooms for care. Attempting to introduce a different vendor to maintain the Hill-Rom fleet would jeopardize the beds as only the OEM can replace the parts as well as software updates which are proprietary to only Hill-Rom, Inc. Any deviation to the proper care and maintenance of the fleet could potentially put Veterans at undue risk.

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition: See statements above.

11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required: None, the presence of patents and copyrights are the main barriers to competition.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

JONATHAN IGLESIAS
Digitally signed by
JONATHAN IGLESIAS
Date: 2026.03.04
14:11:41 -05'00'

Jonathan Iglesias
Biomedical Engineer
VA New York Harbor Healthcare System

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)

- a. **Contracting Officer Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

KIMBERLY WIATROWSKI
Digitally signed by
KIMBERLY WIATROWSKI
Date: 2026.03.03 13:58:14
-05'00'

Kimberly Wiatrowski
Contracting Officer
RPO East NCO 2

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$900K):** I certify the justification meets requirements for other than full and open competition.

JOSEPH CELLINO

Digitally signed by JOSEPH

CELLINO

Date: 2026.03.05 08:57:53 -05'00'

Joseph Cellino
Services Team 1
RPO East NCO 2, Branch Chief